Supreme Court of Louisiana

FOR IMMEDIATE NEWS RELEASE NEWS RELEASE #005

FROM: CLERK OF SUPREME COURT OF LOUISIANA

The Opinions handed down on the **27th day of January, 2023** are as follows:

BY Griffin, J.:

2022-C-00625 *STEVE CROOKS, ET AL. VS. STATE OF LOUISIANA THROUGH THE DEPARTMENT OF NATURAL RESOURCES* *(Parish of Rapides)*

COURT OF APPEAL REVERSED. TRIAL COURT JUDGMENT REINSTATED. SEE OPINION.

Hughes, J., dissents and assigns reasons.

SUPREME COURT OF LOUISIANA

No. 2022-C-00625

STEVE CROOKS, ET AL.

VS.

STATE OF LOUISIANA THROUGH THE DEPARTMENT OF NATURAL RESOURCES

On Writ of Certiorari to the Court of Appeal, Third Circuit, Parish of Rapides

GRIFFIN, J.

We granted this writ to address whether mandamus may lie to compel the State to pay a judgment rendered against it for mineral royalty payments. Finding that the payment of a judgment concerning the return of mineral royalties received by the State requires legislative appropriation, an act that is discretionary in nature, we hold that the appellate court erred in issuing the writ of mandamus.

FACTS AND PROCEDURAL HISTORY

This matter arises out of a 2006 class action suit instituted by Steve Crooks and Era Lee Crooks ("Class Plaintiffs") against the State through the Louisiana Department of Natural Resources ("LDNR") concerning the ownership of riverbanks in the Catahoula Basin and subsequent mineral royalty payments. The underlying facts of this case and its extensive litigation history are set forth in detail in the court of appeal opinion. *Crooks v. Dep't of Natural Resources*, 21-0633 (La. App. 3 Cir. 3/16/22), ___ So.3d ___, 2022 WL 794167.

In 2015, the trial court recognized Class Plaintiffs as owners of the riverbanks and ordered LDNR to pay damages for expropriation and mineral royalties received from the riverbank leases. This Court affirmed the trial court's award for mineral royalties but vacated the expropriation award after finding the claim for inverse condemnation was prescribed. *Crooks v. Dep't of Natural Resources,* 19-0160, p.

20 (La. 1/29/20), 340 So.3d 574, 587. After all legal delays expired, the judgment became final ("the Royalties Judgment").

When LDNR failed to satisfy the Royalties Judgment, Class Plaintiffs sought a mandamus to enforce its payment arguing that depositing funds into the registry of the court to comply with a final judgment is a ministerial act. LDNR opposed arguing that mandamus violates La. Const. art. XII, §10(C) and La. R.S. 13:5109(B)(2) and that the funds sought were unavailable. The trial court denied the writ of mandamus. The court of appeal reversed, finding that mandamus is an appropriate remedy as the funds sought were not public funds and the judgment could not be enforced by ordinary means. *Crooks,* 21-0663, pp. 10-11, 2022 WL 794167 at *5-6.

LDNR's writ application to this Court followed, which we granted. *Crooks v. Dep't of Natural Resources*, 22-0625 (La. 6/22/22), 339 So.3d 621.

DISCUSSION

The issue before this Court is whether mandamus may lie to satisfy the payment of the Royalties Judgment. The interpretation of constitutional articles and statutes is necessarily a question of law to which the *de novo* standard of review is applied. *Newman v. Marchive Partnership, Inc. v. City of Shreveport*, 07-1890, p. 3 (La. 4/8/08), 979 So.2d 1262, 1265.

The Louisiana Constitution divides governmental power among separate legislative, executive, and judicial branches and provides that no one branch shall exercise powers belonging to the others. *Hoag v. State,* 04-0857, p. 4 (La. 12/1/04), 889 So.2d 1019, 1022 (citing La. Const. art. II, §§ 1 and 2). The judicial branch is prohibited from infringing upon the inherent powers of the legislative and executive branches. *Id.* When litigants seek to invoke the power of the judiciary to compel another branch of government to perform or act, we must closely and carefully examine whether the action is within the confines of our constitutional authority. *Id.*

A writ of mandamus is an extraordinary remedy that is directed at a public officer to compel the performance of a ministerial duty required by law. *Jazz Casino Company*, *L.L.C. v. Bridges,* 16-1663 (La. 5/3/17), 223 So.3d 488, 492 (citing La. C.C.P. arts. 3861 and 3863). "A 'ministerial duty' is one 'in which no element of discretion is left to the public officer,' in other words, 'a simple, definite duty, arising under conditions admitted or proved to exist, and imposed by law.'" *Id*. (quoting *Hoag*, 04-0957, p. 7, 889 So.2d at 1024). "If a public officer is vested with any element of discretion, mandamus will not lie." *Id*.

The Louisiana Constitution expressly waives immunity from suits in contract or injury to person or property. La. Const. art. XII, § 10(A). However, the Louisiana Constitution also provides for limitations on this liability and specifies that "[n]o judgment against the state, a state agency, or a political subdivision shall be exigible, payable, or paid except from funds appropriated therefor by the legislature or by the political subdivision against which the judgment is entered." La. Const. art. XII, § 10(C). The legislature enacted La. R.S. 13:5109(B)(2) which further emphasizes any such judgment is only payable by funds appropriated by the legislature for that specific purpose. These provisions vest sole authority with the legislature to appropriate the funds necessary to satisfy a judgment against the state or state agency. *See Hoag*, p. 04-0857, pp. 6-7, 889 So.2d at 1023-24.

Class Plaintiffs maintain that the Royalties Judgment does not require legislative appropriation because the funds sought are not public funds as LDNR was without legal authority to collect royalties from riverbanks it did not own. They contend that mandamus is proper because this matter is indistinguishable from *Jazz Casino* and *Lowther v. Town of Bastrop,* 20-1231 (La. 5/13/21), 320 So.3d 369. Class Plaintiffs further argue that LDNR's arguments are barred by res judicata because the judgment against the department ordering the money into the registry of the court was final. *See Liberty Mutual Fire Ins. Co., v. Weaver*, 16-1008 (La. App.

3 Cir. 5/10/17), 219 So.3d 442. LDNR counters that satisfaction of the Royalties Judgment is a power that lies only with the legislature because the initial claim arose in tort. *See* La. Const. art XII, §10(C); La. R.S. 13:5109(B)(2). We agree.

Mandamus may lie against the state where the duty to be compelled is ministerial and not discretionary. The relevant consideration is "whether the act of appropriating funds to pay the judgment … is a purely ministerial duty for which mandamus would be appropriate." *Hoag*, 04-0857, p. 6, 889 So.2d at 1023. The act of appropriating funds is, by its nature, discretionary and specifically granted to the legislature by La. Const. art. III, § 16. *Id*., 04-0857, p. 7, 889 So.2d at 1024. However, this Court has recognized specific limited exceptions wherein the duty to pay a judgment is constitutionally and statutorily mandated and therefore ministerial in nature. In *Jazz Casino*, we held the appropriation of funds to pay a refund judgment for overpaid taxes is a ministerial duty as mandated by La. Const. art. VII, § 3(A) and La. R.S. 47:1621. 16-1663, p. 9, 223 So.3d at 495. In *Lowther*, we held the clear language of La. Const. art. VI, § 14(A)(2)(e), La. R.S. 33:1992, and La. R.S. 33:1969 reflects a mandate from the legislature that imposes a ministerial duty on a political subdivision to pay the back wages owed to firefighters. 20-1231, p. 6, 320 So.3d at 372-73. These constitutional and statutory provisions operate as *de facto* appropriations by the legislature irrespective of the general limitations set forth in La. Const. art. XII, § 10(C) and La. R.S. 13:5109(B)(2). *See Lowther*, 20-1231, p. 6, 320 So.3d at 372-73 (citing *Perschall v. State*, 96-0322, p. 22 (La. 7/1/97), 697 So.2d 240, 255). Where such provisions exist, courts are merely enforcing the positive law and not encroaching on functions constitutionally dedicated to the legislative branch. *Lowther*, 20-1231, p. 5, 320 So.3d at 372; *Hoag*, 04-0857, p. 4, 889 So.2d at 1022.

We have previously recognized that La. Const. art. XII, §10 creates a "frustrating dichotomy for the state's judgment creditors." *Newman*, 07-1890, p. 4,

979 So.2d at 1266; *see also* Lee Hargrave, *"Statutory" and "Hortatory" Provisions of the Louisiana Constitution of 1974*, 43 La. L. Rev. 647, 653 (1983) ("the apparent liberality of abolishing most immunity from suit was offset by the continuation of a severe limitation on a private citizen's ability to enforce a judgment against the state, a state agency, or a local governmental entity"). However, Class Plaintiffs cite to no controlling constitutional or statutory provisions that allocate funds for the purpose of executing a judgment such as the one at issue here.[1] Although we recognize that Class Plaintiffs are entitled to payment of the Royalties Judgment, the critical element necessary for the issuance of a writ of mandamus is that a public officer is not vested with any element of discretion. *Jazz Casino,* 16-1663, 223 So.3d 488 at 492. If discretion exists, mandamus will not lie. *Id*. In the absence of constitutional and statutory provisions similar in effect to those in *Jazz Casino* and *Lowther*, the Royalties Judgment is payable only when funds are appropriated by the legislature. Thus, the court of appeal erred in issuing the writ of mandamus.

We likewise reject the court of appeal's finding that the funds subject to the Royalties Judgment were not public funds thus warranting mandamus. The funds received from the mineral leases were public funds as they were deposited into the State's general fund. *See* La. Const. art. VII, §10.16 (dedications of mineral revenues) and La. R.S. 30:136.1 (proceeds from mineral leases granted by the State of Louisiana shall be paid into the treasury). Public funds are not subject to seizure. La. Const. art. XII, §10(C). The Director of LDNR certified that the expenditure of the funds required to pay the Royalties Judgment would create a deficit in violation

[1] Class Plaintiffs' res judicata argument is similarly misplaced. An order in derogation of the Louisiana Constitution cannot justify ignoring the very constitutional provision which it violates. *See Newman*, 07-1890, p. 8, 979 So.2d at 1268 ("any judicial order compelling the City to pay those funds would constitute an unconstitutional seizure of public funds under La. Const. art. XII, § 10(C)"); *Riley v. Evangeline Parish Sheriff's Office*, 94-0202 (La. 4/4/94), 537 So.2d 395 ("judgment is enforceable only to the extent that any other judgment against a public agency is enforceable, and is subject to the bar against seizure of public funds") (citing La. Const. art. XII, § 10(C)).

of the requirements placed upon the expenditure of such funds by the legislature. *See* La. C.C.P. art. 3862.

DECREE

For the foregoing reasons, the ruling of the court of appeal is reversed and the judgment of the trial court is reinstated.

COURT OF APPEAL REVERSED; TRIAL COURT JUDGMENT REINSTATED

SUPREME COURT OF LOUISIANA

No. 2022-C-00625

STEVE CROOKS, ET AL

VERSUS

STATE OF LOUISIANA THROUGH THE DEPARTMENT OF NATURAL RESOURCES

ON WRIT OF CERTIORARI TO THE COURT OF APPEAL, THIRD CIRCUIT, PARISH OF RAPIDES

HUGHES, J., dissents.

I respectfully dissent because the facts here are more analogous to an expropriation or wrongful seizure than to a money judgment. The rightful owner of immovable property has a security interest in that property. This is not a case where the government is mandated to "give", but rather a case of "give back".